

DEMO ROADS DEVELOPMENT AUTHORITY

Procedures for the Prevention of Bribery and Corruption

Developed pursuant to section 9 of the Anti-Bribery Act (Cap. 79B), customised from the EACC Model Procedures (July 2024)

Institution	Demo Roads Development Authority (DRDA), Institution ID DEMO-006
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Version / status	Version 1.0 - ACTIVE (no predecessor)
Approval	Approved by the Board of Directors at its 62nd Meeting held on 26 August 2026, Resolution No. DRDA/BD/RES/2026/044
Effective from	1 September 2026
Effective to	Until superseded; scheduled review by 31 August 2028
Custodian	Ms. Janet Muthoni, Head, Legal Services; Designated Senior Officer (Anti-Bribery)

Evidence category: Procedure evidence (Sub-indicator 1). Submitted to the oversight portal on 28 September 2026, before the 30 September 2026 foundation deadline.

1.0 Institutional identity and scope

The Demo Roads Development Authority is a (fictional) state corporation responsible for the development, rehabilitation and maintenance of designated national trunk roads and bridges. It procures and supervises civil works contracts through a headquarters directorate and four regional offices, with an establishment of 386 staff and an active portfolio of 14 works contracts valued at KES 9.2 billion.

These Procedures apply to the Board of Directors, management, all employees (permanent, contract and interns), resident engineers, consultants, contractors, suppliers and any other third party that transacts with the Authority. They cover both the core mandate (road planning and design, tendering of works, contract administration and variations, measurement and payment certification, materials testing and quality assurance, and right-of-way acquisition) and all support services (supply chain, human resource, finance, ICT, fleet and stores).

2.0 Commitment and objective

The Authority maintains zero tolerance to bribery and corruption and is committed to the prevention, detection, deterrence, reporting of and appropriate action against bribery and other forms of corruption, in adherence to the Anti-Bribery Act, the Bribery Regulations 2022, the Attorney-General's Guidelines (2022) and these Procedures.

3.0 Procedure content

3.1 Relevant policies

These Procedures complement the Authority's Code of Conduct and Ethics, Whistle-blower Protection Policy, Conflict of Interest Policy, Gifts and Hospitality Policy, Contract Administration Manual, Anti-Fraud Policy and the Public Procurement and Asset Disposal Act.

3.2 Bribery and corruption risk assessment

The Authority shall identify, assess and map bribery and corruption risks across core and support functions, design controls, and monitor and review them. The assessment is overseen by top management through the Corruption Prevention Committee (CPC), conducted by the Integrity Assurance Officers (IAOs), reviewed at least annually and documented in a Risk Assessment Report and an Anti-Bribery and Corruption Mitigation Plan.

3.3 High-risk areas

Contract variations and extensions of time; measurement and certification of works; tender evaluation; materials testing; right-of-way compensation; gifts and hospitality from contractors; conflicts of interest; and recruitment.

3.4 Managing third parties

All works and consultancy contracts shall include anti-bribery clauses and a conflict-of-interest declaration; contractors and supervising consultants complete a due-diligence questionnaire; these Procedures are shared with all third parties on engagement and at each contract start-up meeting.

3.5 Specific controls for contract variations

No variation order shall be approved unless an Independent Variation Review Panel (IVRP) has first reviewed its technical justification, quantities and rates and recorded its findings on an independent review record (form IVRP-1). Panel members are drawn from the Quality Assurance and Materials directorate and Internal Audit and shall have had no role in the contract concerned. Every variation is entered in the Variation Register (DRDA/CA/VR), which records the review reference and date.

3.6 Reporting channels and processing of reports

Reports may be made in person to the Designated Senior Officer, in writing, to integrity@demo-006.example.invalid, through the reporting boxes at headquarters and each regional office, through the anonymous web form, or directly to the Ethics and Anti-Corruption Commission through its official channels. Reports are acknowledged, recorded in the Reports Register, forwarded to the enforcement structure and to the Commission within 24 hours, inquired into, and the outcome communicated to the Commission within 7 days of determination. The Annex I reporting form of the EACC Model Procedures is adopted without change.

3.7 Protection of whistle-blowers, informants and witnesses

The identity of reporters is kept confidential; retaliation is a disciplinary offence; anonymous reporting is permitted; reports of victimisation are handled by the Designated Senior Officer directly with the Accounting Officer.

3.8 Communication and training

These Procedures are published on the staff intranet and website. All staff in affected functions shall be trained on them as named in the Mitigation Plan; all other staff receive annual sensitisation.

3.9 Monitoring, evaluation and review

The CPC monitors implementation quarterly. These Procedures are reviewed every two years or earlier on a material change in risk, law or EACC guidance, using the Annex 2 compliance checklist of the EACC Model Procedures.

4.0 Designated implementation responsibility

Structure	Holder	Responsibility
Top-level management	Eng. Margaret Wairimu, Director General and Accounting Officer	Overall accountability; chairs the CPC; approves the risk assessment and mitigation plan; provides resources.
Designated Senior Officer	Ms. Janet Muthoni, Head, Legal Services (appointed by letter DRDA/DG/ADM/2026/207 of 1 September 2026)	In charge of prevention of bribery; receives and forwards reports; protects whistle-blowers; sets up the enforcement structure.
Implementation structure	Corruption Prevention Committee (CPC)	Oversees execution of these Procedures; meets at least once each quarter; approves quarterly reports to the Commission.
Technical support	IAO Committee (Chair: Mr. Kelvin Omondi)	Conducts risk assessment; prepares the mitigation plan and quarterly progress reports; meets before each CPC meeting.
Variation control	Independent Variation Review Panel (Chair: Eng. Caroline Akinyi)	Reviews every variation before approval and issues the IVRP-1 record.
Enforcement structure	Staff Disciplinary Committee	Inquires into reports and recommends administrative action under the HR Policy.

5.0 Approval details

Approving authority	Board of Directors, Demo Roads Development Authority
Meeting and resolution	62nd Board Meeting, 26 August 2026; Resolution DRDA/BD/RES/2026/044 adopting these Procedures
Effective date	1 September 2026
Next review	By 31 August 2028

Name	Designation / role	Signature	Date
Mr. Hassan Abdi	Chairperson, Board of Directors		26 Aug 2026
Eng. Margaret Wairimu	Director General and Accounting Officer; Secretary to the Board		26 Aug 2026

Declaration of commitment to implement the requirements of the Anti-Bribery Act, Regulations, Guidelines and these Procedures

The Demo Roads Development Authority is committed to implement these Procedures on prevention of bribery and other forms of corruption developed pursuant to section 9 of the Anti-Bribery Act, Cap. 79B.

Name	Designation / role	Signature	Date
Eng. Margaret Wairimu	Head of Entity: Director General		1 Sep 2026

Date of next review: 31 August 2028.